

3. Letting your debt be known to others

All communications from the agency need to be private. Envelopes containing letters should not have any blatant wording of it being from a collection entity. When calling to speak to you at work, they should not inform your boss or anyone else answering the phone that the call is regarding a debt.

4. Calling outside of normal hours

Unless you have given explicit permission for 2:00 AM phone calls, agencies may not call someone before 8:00 AM and after 9:00 PM regarding debt.

5. Pretending to be someone they aren't

Letters from the agency need to be on agency or creditor letterhead. It is against the law for a notice to come from an "attorney" or "court" letterhead, unless it is an actual legal document from them directly.

Other illegal tactics include asking for you to provide checking account numbers or postdated checks with the intention of prosecuting you if they come back "insufficient"

from your bank. They also may not charge interest or collection fees not stated in your original purchase contract or that may be prohibited by state law.

The FDCPA also requires that agencies send a written notice within five days of their first contact with you. This notice must include:

1. How much money you reportedly owe;
2. The name of the creditor to whom the debt is owed;
3. That unless you, within 30 days after receipt of the notice, dispute the validity of the debt or any portion thereof, the debt will be assumed valid by the debt collector;
4. That if you dispute the debt in full or in part within that 30-day period, the debt collector will obtain verification of the debt and mail it to the consumer; and
5. That upon your written request within the 30-day period, the debt collector will provide you with the name and address of the original creditor, if different from the current creditor.

A "mini Miranda warning" must be included in the notice. This is a statement letting you know that the notice is from a debt collector, and any information obtained may be used to collect the debt.